

AMENDMENT TO THE CALIFORNIA RULES OF COURT
Adopted by the Judicial Council on March 2, 2018, effective March 5, 2018

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23 **Rule 8.866. Preparation of reporter's transcript**

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25 **(a)–(c) * * ***

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27 **(d) When preparation must be completed**

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29 **(1)** The reporter must deliver the original and all copies to the trial court clerk as
30 soon as they are certified but no later than 20 days after the reporter is
31 required to begin preparing the transcript under (a). Only the presiding judge
32 of the appellate division or his or her designee may extend the time to prepare
33 the reporter's transcript (see rule 8.810).

34
35 **~~(2)~~(2)** If the appellant deposited with the clerk an amount equal to the estimated cost
36 of preparing the transcript and the appeal is abandoned or dismissed before
37 the reporter has filed the transcript, the reporter must inform the clerk of the
38 cost of the portion of the transcript that the reporter has completed. The clerk
39 must pay that amount to the reporter from the appellant's deposited funds and
40 refund any excess deposit to the appellant.

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42 *(Subd (d) amended effective March 5, 2018; previously amended effective March 1, 2014,*
43 *and January 1, 2017, and January 1, 2018.)*

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2 **(e)–(f) * * ***

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4 *Rule 8.866 amended effective March 5, 2018; adopted effective January 1, 2009; previously*
5 *amended effective March 1, 2014, January 1, 2016, January 1, 2017, and January 1, 2018.*